KELLY CHINAKA
versus
THE STATE

HIGH COURT OF ZIMBABWE
**WAMAMBO J**
HARARE; 29 July 2026

***Bail Pending Appeal***

*M Makuvatsire*, for the applicant
*E Makoto*, for the respondent

WAMAMBO J: This is an application for bail pending appeal. The application is opposed by the respondent. Before the Trial Magistrate there were five accused persons including the applicant. The applicant was accused number four. Two counts were preferred by the State and applicant was found guilty on both counts. The first count is that of robbery as defined in section 126 of the Criminal Law Codification and Reform Act [*Chapter 9:23*]. The second count is unlawful entry into premises in aggravating circumstances as defined in section 131 of the Criminal Law Codification and Reform Act [*Chapter 9:23*]. In count the trial Magistrate meted out a sentence of twelve years imprisonment of which three years imprisonment was suspended on conditions of good behavior. One month was suspended on condition of restitution.

In count two the applicant was sentenced to twelve years imprisonment of which three years imprisonment were suspended on condition of good behaviour. Five years imprisonment were suspended on condition of restitution.

The applicant has filed a notice of appeal reflecting that she is appealing against both conviction and sentence.

In count one on 9 December 2025 at 235 Delport Road Sunway Way City Masasa Harare the applicant and her co-accused robbed the complainant whilst armed of a CCTV, DVR and a Samsung phone.

In count two on 9 December 2025at 235 Delport Road, Sunway City, Msasa, Harare the applicant and her co-accused unlawfully entered the complainant's house through a roof

sheet broke the doors to the saver room and office, cut the safe using a grinder and stole cash in the amount of US$ 238 000,00.

The principles governing an application for bail pending appeal are the likelihood of abscondment prospects of success on appeal, the right of an individual to liberty and the potential length of the delay before the appeal is heard.

See *Tatenda Kamudyariwa* v *The state* HH 97/19, *State* v *Musasa* SC 45/02.

Risk of abscondment

The applicant avers that she was granted bail pending trial and religiously attended every court session. She also submits that she is a young mother and that will motivate her not to abscond for the sake of her children.

Upon conviction the applicant is no longer presumed innocent. Her situation is that of a convicted person. The motivation to abscond become more probable. She now knows her fate including the long prison years. The likelihood of abscondements in such circumstances remains highly probable.

Every person has the right to individual liberty. The right is interfered with through lawful process such as a conviction and a sentence such as in this case.

It is now well known that delays in the hearing of appeals is a thing of the past. Appeals are now being heard expeditiously. It is in both the applicant and respondent's interests that there are no longer any delays in the hearing of appeals. The applicant is of the view that she has a fighting chance on appeal. The respondent submitted that there are no prospects of success on appeal an account of the strong evidence implicating the applicant.

In the judgment the trial court found that applicant was implicated through the following:

She was discredited in her testimony and her explanation on her movements were not consistent. She generally was a poor witness. The court *a quo* went at length to analyse the evidence and in particular what applicant herself said, in her *viva voce* testimony.

The court disbelieved her for reasons as stated on the record. There is also the issue of messages between her and accused three which the court *a quo* was alive to and which issue the court analysed very closely.

The respondent gave more flesh to the issue of the text messages between applicant and accused three. In paragraph nine of the respondent's response to the application the following appears

> "9. In case the messages found in her mobile phone in which she communicated with accused 3 wherein reference was made to disposal of all the things from the vehicle which were left "at a certain place" clearly indicate her involvement in one way to the other in the commission of the offence. Accused 3 indicated to the police that these were the tools used in the commission of the offence namely balaclavas gloves and grinders among other things. Indeed, accused 3 led to the recovery of the same"

I find that the full circumstances of the evidence implicating applicant leave no room for prospects of success on appeal against conviction.

On sentence regard is had to the serious features of the offences.

The two offences were committed at the same premises

The offences are serious offences involving planning and violent execution. Violence a firearm and threats were heavily used.

Such offences as the ones applicant was convicted of normally attract long prison stretches.

The sole ground of appeal on sentence speaks to applicant being in a special category of offenders of which the sentences in the two counts should have been ordered to run concurrently.

Tellingly in oral submissions the issue of the appeal against sentence was not adverted to. There was a heavy emphasis on the appeal against conviction.

Sentences passed in related matters place the sentence passed in this matter within the same range. After due consideration of the full circumstances of this matter I find no prospects of success on appeal against sentence.

I find therefore that the appeal ought to be dismissed and I order as follows:

The application for bail pending appeal be and is hereby dismissed

**WAMAMBO J:……**

*Machaya and Associates*, applicant's legal practitioners
*National Prosecuting Authority*, respondent's legal practitioners